

26CHCV00974 26CHCV00974

County: los-angeles

Division: Civil Law and Motion

Department: F49

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Case Number: 26CHCV00974 Hearing Date: September 1, 2026 Dept: F49

Dept. F49

Date: 8/31/26

Case Name: Victor Estrada; and Mirian Jeannette Vega
vs. Jose Luis Moreno; and Does 1-50

Case No. 26CHCV00974

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 31, 2026

PETITION TO
APPROVE COMPROMISE OF DISPUTED CLAIM FOR MINOR

Los Angeles Superior
Court Case No. 26CHCV00974

Petition filed: 8/3/26

MOVING PARTY: Minor Eliana Magdalen Estrada, by and
through her parent and Guardian ad Litem, Mirian Jeannette Vega

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: Petitioner seeks the Court’s approval of the settlement that her minor child, Claimant Eliana Magdalen Estrada, reached with Defendant.

TENTATIVE RULING: The Petition is CONTINUED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiffs Victor Estrada and Mirian Jeannette Vega (“Petitioner”) (collectively, “Plaintiffs”) in a motor vehicle accident that occurred on April 13, 2024. Petitioner’s minor daughter, Claimant Eliana Magdalen Estrada (“Claimant”), was a passenger in the vehicle at the time of the accident. (Compl., ¶ GN-1.) On March 10, 2026, Plaintiffs filed the Complaint against Defendant Jose Luis Moreno (“Defendant”) and Does 1 through 50, alleging motor vehicle and general negligence.

On July 14, 2026, the parties informed the Court that the case had settled.

On August 3, 2026, Petitioner filed a Petition for Approval of Compromise of Claim.

No opposition or objection has been filed.

ANALYSIS

Rule/Requirement/Component

Application

Comments

Claimant (minor)

Eliana Magdalen Estrada

DOB: 10/5/16, age: 9

Guardian ad Litem¿

Mirian Jeannette Vega

Parent, GAL

status granted 8/7/26

Settlement (Total)¿

\$4,000.00 (MC-350, ¶ 16)¿¿

Settlement

amount to Claimant incorrectly stated as \$30,000.00 (MC-350, ¶ 10a), which represents the settlement amount offered to Claimant and all Plaintiffs.

Injuries¿

None. (MC-350, ¶ 6)

¿

Medical treatment received?¿

No. (MC-350, ¶ 7.)

¿

Completely healed of injuries?¿

N/A. (MC-350, ¶ 8a)¿

Medical Expenses Incurred (Total)¿

\$0.00 (MC-350 ¶ 12a(1))¿

Medical Bills (Documentation)¿

N/A.

Outstanding medical payments owed from proceeds¿

\$0.00 (MC-350, ¶ 12a(4))¿

Provider Liens (Documentation)¿

N/A

Negotiated Lien Reductions?¿

N/A

Documentation of lien reductions¿

N/A

¿

Attorney Fees¿

\$1,000.00 (25% of \$4,000.00) (MC-350, ¶ 13b)

No

declaration attached substantiating the fees claimed.

Declaration of fees and copy of retainer? (Cal. Rules of Court, rule 7.955(b).)¿

No.

Litigation Costs¿

\$1,672.19 (MC-350, ¶ 13b)¿

Includes

\$1,000.00 in attorney fees incorrectly itemized as costs.

Are the costs itemized and reasonable?¿

Insufficient information provided as to reasonableness
of attorney fees. (MC-350, ¶ 13b)

Total to be paid to minor¿

\$2,327.81 (MC-350, ¶ 15)

Blocked account?¿

No. (MC-350, ¶ 18(b)(5).)

\$2,327.81 to be paid directly to Claimant's parent.

(MC-350, ¶ 18b(5).)

The Petition does not include the name and address of
the parent, and the value of Claimant's estate has not been verified by the
parent.

Proposed order to approve compromise is congruent with
Petition?¿

No.
(MC-351.)

Proposed
order indicates that the balance to be paid to Claimant, after all expenses
are paid, is \$4,000.00, which does not correspond to the expenses and balance
listed in the Petition. (MC-351, ¶ 8b.) Proposed order also states that the
funds will be deposited into a blocked account.

Proposed order to deposit funds is congruent with
Petition?¿

No proposed order to deposit funds filed.
Clarification required regarding distribution method.

Disposition¿

CONTINUED.

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After thoroughly reviewing the Petition and supporting documents, the Court identifies the following discrepancies:

(1)

The Petition itemizes

\$1,000.00 in attorney fees as costs for the services of the Law Office of Andy Van Le & Associates, PC, but fails to substantiate the claimed fees with a declaration or fee agreement. "A petition requesting court approval and allowance of an attorney's fees ... must include a declaration from the attorney that addresses the factors listed in [subdivision] (b) that are applicable to the matter before the court." (Cal. Rules of Court, rule 7.955, subd. (c).)

(2)

The Petition indicates

that the balance to be paid to the minor will be paid directly to her parent, but fails to identify the parent and state the parent's address or verify that the total value of the minor's estate meets statutory requirements for such disbursement.

(3)

The proposed order

indicates that the balance to be paid to the minor is \$4,000.00, which is incongruent with the \$2,327.81 listed in the Petition. Petitioner must clarify whether any costs and fees will be paid from the minor's recovery or if the entire \$4,000.00 settlement amount is to be paid to Claimant.

(4)

The proposed order

indicates that the settlement must be paid by check to be deposited into a blocked account, yet the Petition states that payment will be made to the minor's parent. (MC-351, ¶ 8b.) Petitioner must clarify the distribution method.

Based on the foregoing, the Court CONTINUES the Petition to allow Petitioner an opportunity to address the noted discrepancies.

CONCLUSION

The Petition for Approval of Compromise of Claim, filed by Claimant Eliana Magdalen Estrada, by and through her Guardian ad Litem, Elian Jeannette Vega, is CONTINUED.

Moving party to give notice.